

Civilization & Decivilization?

1. Live-in Relationship

→ From Immoral to Recognized
→ social acceptance evolving

S. Khushboo vs Kanniammal (2010)

"Living Together is a Rt. to life"

• Live-in Relationship

→ cannot be enjoyed by married ones.
→ should be public (public/social recognition)
→ children not illegitimate

↳ Paramount Welfare Principle.

↳ Welfare of child is Paramount, not the rights of the parent.

[Gaurav Nigpal vs Sumedha Nigpal
C 2009]

2. Same Sex Marriage

→ Decriminalization (Navtej Johar v UOI (2018))

→ Global Acceptance Increasing

→ Legal Pluralism → marriage: not necessary boy ↔ girl

→ Cultural evolution.

Types of Marriage

→ Force Marriage	Manipulation
→ Fraud "	Misuse
→ False "	Myths
	Misconception

Conclusion:

The SC's matrimonial Jurisprudence represents a remarkable transformation from rigid, religion-based law to a flexible rights-based framework that balances tradition with modernity, collective with individual, & stability with change.

Private Int. Law:

- Justice Across Border
- complex area of legal JP → Balancing sovereignty & comity.
 - Jurisdictional JP
 - Forum Shopping

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It is same as asking: "Can we make a house without foundation?"
Can we Build a Legal System Without Principles?

- Legal Principles form the "invisible architecture" of any legal system.
- Principles are not merely decorative addition but essential components that give life, coherence & legitimacy to law.

They:

- fill gaps
- resolve conflicts
- ensure justice
- adapt rigid rules to changing circumstances
- legitimacy & Acceptability
- Flexibility & Adaptability
- coherence & consistency

Principles vs Rules:

Rules:

- Binary Application (applies or doesn't)
(Rules apply in all-or-nothing fashion)
Ex: speed limit is 60 km/hr.
(Note, there cannot be another rule stating speed limit 40 km/hr in same place)
- Determine outcome.

Principles:

- Principle have weight.
- Principle survive counter-instance.
- Flexible application.
Ex: Justice Hurried Justice Buried
Justice Delayed Justice Denied
- Principles as soul of law & rules as body of law.
Integration of this two is essential.

Classification of Legal Principle

1. Foundational Principle
 - ROL
 - SOP
 - Democracy
 - Constitutionalism
2. Constitutional Principles
 - Basic Str. Doctrine
 - Constitutional Morality
 - JR

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3. Procedural Principle:

- NJ
- fair Trial

4. Interpretative Principles:

- Literal Interpretation
- Golden Rule
- Mischief Rule
- Harmonious Construction
- Purposive Interpretation

5. Equitable Principle: (Justice Beyond Law)

- Equity follows laws - supplementary role
- Clean Hands Doctrine
- Estoppel
- Unjust Enrichment
- Good Faith

Sources of Legal Principles:

1. Common law heritage:

- Maxims of law
- precedential principles
- Equity JP.

2. Constitution Text:

- Preamble
- FRs
- DRs

3. Ancient Text

- Dharmashastra
 - Arthashastra
 - Nyaya
 - Local customs
 - Religious law
- principle concepts philosophy → same term variety

4. Int-law

- UDHR
- Treaty obligation
- customary Int law
- UN principles

5. Judicial Creativity

- Judge-Made Principles
- Const. Interpretation
- Gap-filling principles
- Adaptive "
- Transformative "

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• Principle Alone cannot guarantee justice. They require:-

1. Committed Institutions to uphold them
2. Vigilant Citizens to defend them
3. Ethical Professionals to apply them.
4. Democratic Culture to sustain them
5. Continuous Renewal to keep them relevant

Golden Rule Vs Mischief Rule:

• Golden Rule is about the words - small-scale fix for absurdity

• Mischief Rule is large-scale strategy to achieve purpose. It is about "Why."

- Mischief = problem

→ problem that the old law didn't cover

②32 • Test for Identifying substantive & procedural provision of a law:

1. The Rights vs Remedy Test

Substantive Law:

Creates, defines, or extinguishes legal rights, duties & obligations.

Procedural law:

Provides the mechanism or method to enforce those rights.

2. The Effect Test

Substantive

- Affects the legal relationship between parties

Procedural

- Affect only the manner of conducting legal proceedings.

3. The "Purpose Test"

Substantive:

Aims to declare what the law is.

Procedural:

Aims to prescribe how the law should be administered.

Borderline Cases:

Some provisions may have both substantive & procedural aspects.

Eg: Limitation period

- Generally procedural, but can affect substantive rights.

Decision Tree

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Legal Provision



Does it create/define/extinguish rights?

Yes

NO

substantive does it affect legal relationship?

Yes

NO

substantive does it govern court processes?

Yes

NO

Procedural

Requires contextual analysis

— Substantive & Procedural are "Rough Guide."

Rough category is better than no category for analysis.

Analogy: A map is not the territory, but it's still useful for navigation.

- provides starting point for legal analysis.
- offers presumptive framework for decision-making
- facilitates communication among legal prof.
- Enables systematic thinking about legal problems.

The beauty of law lies not in its perfect precision but in its capacity to evolve & adapt while maintaining sufficient structure to guide human conduct & resolve disputes fairly.

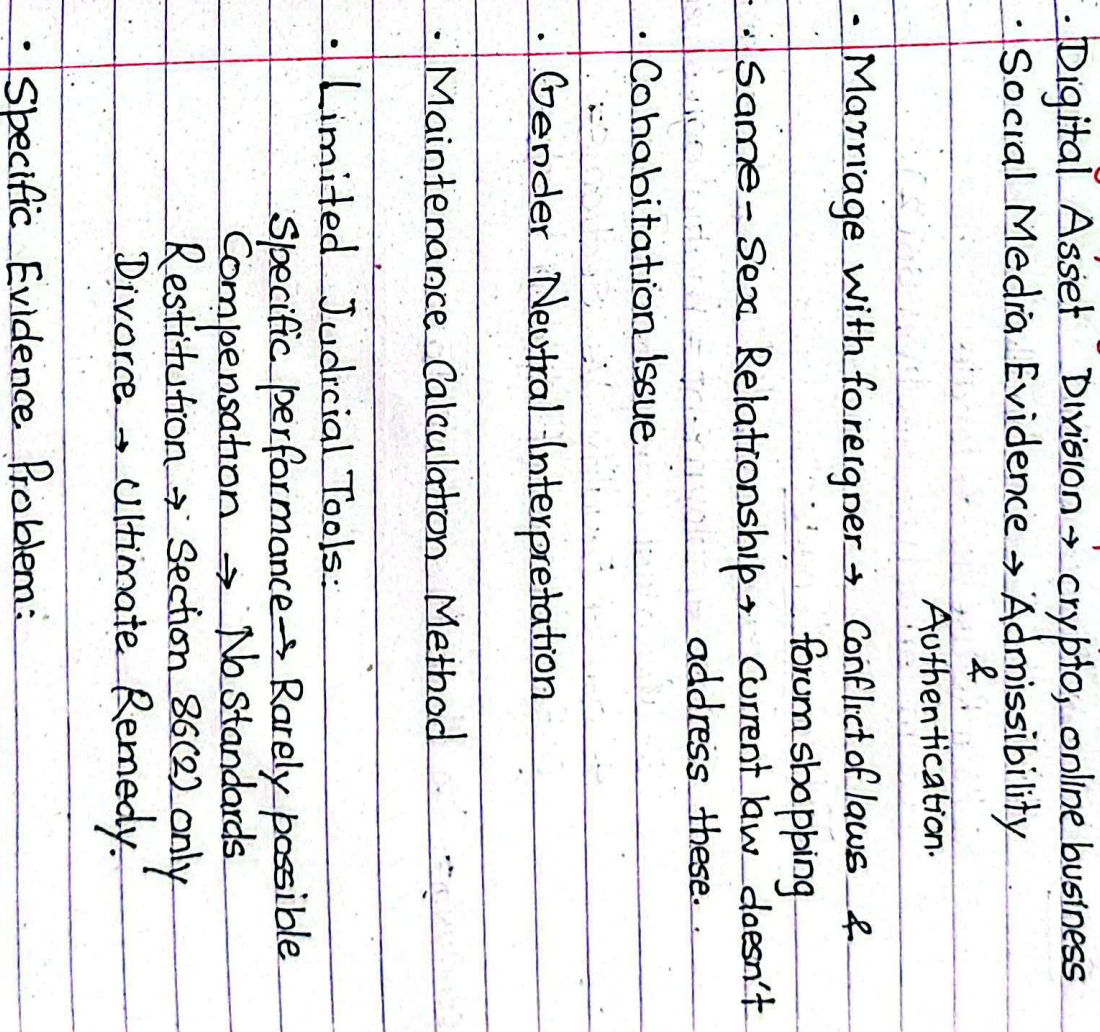
• Contract JP

- Contract JP reveals the ^{constant} ~~fundamental~~ tension betⁿ:
 - freedom of contract & fairness
 - commercial certainty & consumer protection
 - traditional doctrine & modern needs.
- Theoretical Development in Contract Law:
 - Will theory of Contract
 - Sanctity of contract supreme
 - Minimal judicial intervention
 - Weaker Party Protection
 - Unconscionability Doctrine
 - Good Faith Recognition
 - Commercial Reasonableness
 - Relational Contract Theory
 - Behavioral Insights.

Freedom of Contract:

- Parties are best judges to their interests.
- Courts shouldn't rewrite contracts
- - Pre-contractual duty
 - Disclosure obligation
 - Caveat Emptor
- Estoppel as shield not sword.
 - Part performance
 - Doctrine of Frustration
 - Basic purpose defeated
 - Radically different situation
 - Force Majeure clauses
 - Pandemic as frustrating event

Emergency in Contemporary Issues:



- Authentication.
- Marriage with foreigner → Conflict of laws & forum shopping
- Same-Sex Relationship → Current law doesn't address these.
- Cohabitation Issue
- Gender Neutral Interpretation
- Maintenance Calculation Method
- Limited Judicial Tools:
 - Specific performance → Rarely possible
 - Compensation → No Standards
 - Restitution → Section 86(2) only
 - Divorce → Ultimate Remedy.
- Specific Evidence Problem:
 - 1. Love & Harmony (86(1)) } Standard
 - 2. Support & Respect 86(3) } Missing.
 - Impossible to prove

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Case Study:

Facts:

Wife → Doctor in Ktm
Husband → Lecturer in Pkr
Both Refuse to Relocate
Claim Breach of Section 86C2)

Judicial Challenges:

- 1- Is career a valid reason for separation?
2. Does employment = mutual agreement?
- 3- Who must compromise?
4. Gender Equality Vs Section 87
- 5- Best Interest of children Involved.

Conclusion → No Clear Answer in Law.

Legal discrimination on the basis of financial status

Ex: Adoption of Child (Section 1731C1)(b))

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Justice through Jurisdiction Design.
Jurisdiction : - Serving Jurisdiction

- Sovereigns monopoly on legitimate violence within a territory.
 - maintaining law & order through punishment constitution
- Jurisdiction fundamentally derives from the sovereigns monopoly on legitimate violence within a territory.
 - Weber
- Courts exercise derivative sovereign power
- Jurisdiction : (Principle/Types)
 - Territorial Jurisdiction (dominant despite globalization)
 - Personal Jurisdiction (Nationality of Parties)
 - Universal Jurisdiction (crime against humanity)
 - Effect Doctrine (Extraterritorial conduct causing domestic harm)
 - Consent-based Jurisdiction (Contract)

प्रति निष्पत्ति आदेशों के आधार पर

Global context on Jurisdiction

- Rooker - Feldman doctrine
 - preventing federal courts from reviewing state courts judgements. (USA)
- Forum non conveniens doctrine
 - Allows common law courts discretionary dismissal even with jurisdiction. (UK)
- Competence - Competence Doctrine
 - Allows courts to determine their own jurisdiction creating a self-referential legitimacy.
- Ex: Arbitration decide their own jurisdiction first. (France)
 - US permits law arbitrators decide their own jurisdiction first
 - US law permits simultaneous court review for gateway questions
- [Arbitration creates parallel private jurisdiction system. Competence - Competence Principle differ between Jurisdiction]

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Jurisdiction promote procedural justice:-

→ Has Dual Character: Hybrid (Procedural + Substantive)
: as dual nature of right

1. Predictability & Certainty.
2. Full Faith & Credit
3. Recognition & Enforceability
4. Create a clear path for appeals.

• Forum Selling by plaintiff - friendly jurisdiction
→ in patent & torts.

• Doctrine of Comity:

- This principle prevent conflicting judgements & respect sovereignty both nations while ensuring victims have forum for redress.
- Treaties & conventions help coordinate these rules globally.

Jurisdictional Standii $\neq$ Locus standii

Paradigm Shift & Recent Trend in Domestic Matter Jurisdiction:

© In Family Law:

Traditional Approach

1. Domicile-Centric

→ husband's domicile determine family jurisdiction.

Modern Approach

1. Individual Autonomy

each spouse has independent jurisdictional standing

2. Unity of Spouse Doctrine

→ wife's legal identity merged with husband's

2. Gender neutral standards.

3. Patriarchal Presumptions:

→ father's automatic custody rights.

3. Child Centre Approach

- Best Interest of Child Supersede parental rights.

4. Status determination:

courts focused on legal status rather than actual relationships.
(*colle iure*)

4. functional family recognition:-

de facto relationships gain jurisdictional recognition